



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 4010: genetic counselors; board; licensure

PINGERELLI FLOOR AMENDMENT

1. Prohibits a person from taking action against a genetic counselor for declining to participate in genetic counselling service on the basis of conscience.

PINGERELLI FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 4010
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 32, Arizona Revised Statutes, is amended by adding
3 chapter 27, to read:

4 CHAPTER 27

5 BOARD OF GENETIC COUNSELORS

6 ARTICLE 1. GENERAL PROVISIONS

7 32-2701. Definitions

8 IN THIS CHAPTER, UNLESS THE CONTEXT OTHERWISE REQUIRES:

9 1. "ACTIVE CANDIDATE STATUS" MEANS THAT A PERSON MEETS THE
10 REQUIREMENTS ESTABLISHED BY THE AMERICAN BOARD OF GENETIC COUNSELING, OR
11 ITS SUCCESSOR, TO TAKE THE AMERICAN BOARD OF GENETIC COUNSELING'S
12 CERTIFICATION EXAMINATION IN GENERAL GENETICS AND GENETIC COUNSELING AND
13 HAS BEEN GRANTED THIS DESIGNATION.

14 2. "BOARD" MEANS THE BOARD OF GENETIC COUNSELORS.

15 3. "CERTIFICATION" MEANS CERTIFICATION AS A GENETIC COUNSELOR BY
16 THE AMERICAN BOARD OF GENETIC COUNSELING, OR ITS SUCCESSOR, OR THE
17 AMERICAN BOARD OF MEDICAL GENETICS AND GENOMICS, OR ITS SUCCESSOR, OR
18 CERTIFICATION AS A PhD GENETICIST BY THE AMERICAN BOARD OF MEDICAL
19 GENETICS AND GENOMICS, OR ITS SUCCESSOR.

20 4. "DIRECTOR" MEANS THE DIRECTOR OF THE BOARD.

21 5. "GENETIC COUNSELING" MEANS A COMMUNICATION PROCESS THAT MAY
22 INCLUDE:

23 (a) ESTIMATING THE LIKELIHOOD OF THE OCCURRENCE OR RECURRENCE OF
24 ANY POTENTIAL INHERITED OR GENETICALLY INFLUENCED CONDITION OR CONGENITAL
25 ABNORMALITY, INCLUDING:

26 (i) OBTAINING AND ANALYZING THE COMPLETE HEALTH HISTORY OF AN
27 INDIVIDUAL AND THE INDIVIDUAL'S FAMILY MEMBERS.

28 (ii) REVIEWING PERTINENT MEDICAL RECORDS.

1 (iii) EVALUATING THE RISKS FROM EXPOSURE TO POSSIBLE MUTAGENS OR
2 TERATOGENS.

3 (iv) DETERMINING APPROPRIATE GENETIC TESTING OR OTHER EVALUATIONS
4 TO DIAGNOSE A CONDITION OR DETERMINE THE CARRIER STATUS OF ONE OR MORE
5 FAMILY MEMBERS.

6 (v) ORDERING, COORDINATING AND DISCLOSING GENETIC LABORATORY TESTS
7 AND RESULTS AND OTHER DIAGNOSTIC STUDIES AS APPROPRIATE FOR THE GENETIC
8 ASSESSMENT.

9 (b) HELPING AN INDIVIDUAL, FAMILY MEMBER OR HEALTH CARE PROVIDER
10 TO:

11 (i) APPRECIATE THE MEDICAL, PSYCHOLOGICAL AND SOCIAL IMPLICATIONS
12 OF A DISORDER, INCLUDING ITS FEATURES, VARIABILITY, USUAL COURSE AND
13 MANAGEMENT OPTIONS.

14 (ii) LEARN HOW GENETIC FACTORS CONTRIBUTE TO A DISORDER AND AFFECT
15 THE CHANCE FOR OCCURRENCE OF THE DISORDER IN OTHER FAMILY MEMBERS.

16 (iii) UNDERSTAND AVAILABLE OPTIONS FOR COPING WITH, PREVENTING OR
17 REDUCING THE CHANCE OF THE DISORDER OCCURRING IN OTHER FAMILY MEMBERS.

18 (c) FACILITATING AN INDIVIDUAL'S OR FAMILY MEMBER'S:

19 (i) EXPLORATION OF THE PERCEPTION OF RISK AND BURDEN ASSOCIATED
20 WITH A GENETIC DISORDER.

21 (ii) ADJUSTMENT AND ADAPTATION TO A DISORDER OR THE INDIVIDUAL'S OR
22 FAMILY MEMBER'S GENETIC RISK BY ADDRESSING NEEDS FOR PSYCHOLOGICAL, SOCIAL
23 AND MEDICAL SUPPORT.

24 6. "GENETIC COUNSELING INTERN" MEANS A STUDENT WHO IS ENROLLED IN A
25 GENETIC COUNSELING PROGRAM ACCREDITED BY THE AMERICAN BOARD OF GENETIC
26 COUNSELING, OR ITS SUCCESSOR, OR THE AMERICAN BOARD OF MEDICAL GENETICS
27 AND GENOMICS, OR ITS SUCCESSOR.

28 7. "GENETIC COUNSELOR" MEANS A PERSON WHO IS LICENSED PURSUANT TO
29 THIS CHAPTER TO ENGAGE IN THE PRACTICE OF GENETIC COUNSELING.

30 32-2702. Board of genetic counselors; membership;
31 appointment; terms; immunity; compensation

32 A. THE BOARD OF GENETIC COUNSELORS IS ESTABLISHED CONSISTING OF THE
33 FOLLOWING MEMBERS WHO ARE APPOINTED BY THE GOVERNOR:

34 1. FIVE GENETIC COUNSELORS WHO HOLD ACTIVE CERTIFICATION IN GOOD
35 STANDING WITH THE AMERICAN BOARD OF GENETIC COUNSELING AND, BEGINNING
36 JANUARY 1, 2028, WHO HOLD AN ACTIVE LICENSE PURSUANT TO THIS CHAPTER AND
37 WHO HAVE NOT PREVIOUSLY BEEN SUBJECT TO DISCIPLINARY ACTION AS A HEALTH
38 PROFESSIONAL IN THIS STATE OR ANY OTHER JURISDICTION. THE GOVERNOR MAY
39 SEEK INPUT AND NOMINATIONS BEFORE THE GOVERNOR MAKES THESE APPOINTMENTS.

40 2. TWO PUBLIC MEMBERS.

41 3. ONE PHYSICIAN WHO IS ACTIVELY ENGAGED IN THE PRACTICE OF
42 MEDICINE, WHO IS LICENSED PURSUANT TO CHAPTER 13 OF THIS TITLE AND WHO
43 INTERACTS PROFESSIONALLY WITH GENETIC COUNSELORS.

44 4. ONE PHYSICIAN WHO IS ACTIVELY ENGAGED IN THE PRACTICE OF
45 MEDICINE, WHO IS LICENSED PURSUANT TO CHAPTER 17 OF THIS TITLE AND WHO
46 INTERACTS PROFESSIONALLY WITH GENETIC COUNSELORS.

1 B. BEFORE APPOINTMENT BY THE GOVERNOR, A PROSPECTIVE MEMBER OF THE
2 BOARD SHALL SUBMIT A FULL SET OF FINGERPRINTS TO THE GOVERNOR FOR THE
3 PURPOSE OF OBTAINING A STATE AND FEDERAL CRIMINAL RECORDS CHECK PURSUANT
4 TO SECTION 41-1750 AND PUBLIC LAW 92-544. THE DEPARTMENT OF PUBLIC SAFETY
5 MAY EXCHANGE THIS FINGERPRINT DATA WITH THE FEDERAL BUREAU OF
6 INVESTIGATION.

7 C. THE TERM OF OFFICE OF MEMBERS OF THE BOARD IS FOUR YEARS TO
8 BEGIN AND END ON SEPTEMBER 1.

9 D. EACH BOARD MEMBER IS ELIGIBLE FOR APPOINTMENT TO NOT MORE THAN
10 TWO FULL TERMS, EXCEPT THAT THE TERM OF OFFICE FOR A MEMBER WHO IS
11 APPOINTED TO FILL A VACANCY THAT IS NOT CAUSED BY THE EXPIRATION OF A FULL
12 TERM IS FOR THE UNEXPIRED PORTION OF THAT TERM, AND THE GOVERNOR MAY
13 REAPPOINT THAT MEMBER TO NOT MORE THAN TWO ADDITIONAL FULL TERMS. EACH
14 BOARD MEMBER MAY CONTINUE TO HOLD OFFICE UNTIL THE APPOINTMENT AND
15 QUALIFICATION OF THAT MEMBER'S SUCCESSOR. THE GOVERNOR MAY REMOVE A
16 MEMBER AFTER NOTICE AND A HEARING ON A FINDING OF MALFEASANCE, MISFEASANCE
17 OR INCOMPETENCE IN OFFICE, UNPROFESSIONAL OR DISHONORABLE CONDUCT IN
18 OFFICE OR UNPROFESSIONAL OR DISHONORABLE CONDUCT. A BOARD MEMBER'S
19 VIOLATION OF SECTION 32-2714 IS GROUNDS FOR REMOVAL FROM THE BOARD. THE
20 GOVERNOR SHALL APPOINT A QUALIFIED REPLACEMENT TO FILL A VACANT POSITION
21 FOR THE UNEXPIRED PORTION OF THE TERM.

22 E. A BOARD MEMBER'S TERM AUTOMATICALLY ENDS:

23 1. ON WRITTEN RESIGNATION SUBMITTED TO THE BOARD CHAIRPERSON OR TO
24 THE GOVERNOR.

25 2. IF THE MEMBER IS ABSENT FROM THIS STATE FOR MORE THAN SIX MONTHS
26 DURING A ONE-YEAR PERIOD.

27 3. IF THE MEMBER FAILS TO ATTEND THREE CONSECUTIVE REGULAR BOARD
28 MEETINGS.

29 4. FIVE YEARS AFTER RETIREMENT FROM ACTIVE PRACTICE, IF APPLICABLE.

30 F. BOARD MEMBERS ARE IMMUNE FROM CIVIL LIABILITY FOR ALL GOOD FAITH
31 ACTIONS TAKEN PURSUANT TO THIS CHAPTER.

32 G. BOARD MEMBERS ARE ELIGIBLE TO RECEIVE COMPENSATION IN THE AMOUNT
33 OF \$200 FOR EACH DAY OF ACTUAL SERVICE IN THE BUSINESS OF THE BOARD AND
34 FOR ALL EXPENSES NECESSARY AND PROPERLY INCURRED IN ATTENDING BOARD
35 MEETINGS.

36 32-2703. Powers and duties; delegation of authority;
37 meetings; rules; subcommittees; immunity;
38 directory online

39 A. THE BOARD SHALL:

40 1. AS ITS PRIMARY DUTY, PROTECT THE PUBLIC FROM UNLAWFUL,
41 INCOMPETENT, UNQUALIFIED, IMPAIRED OR UNPROFESSIONAL GENETIC COUNSELORS.

42 2. LICENSE AND REGULATE GENETIC COUNSELORS PURSUANT TO THIS
43 CHAPTER. THE BOARD SHALL EXERCISE ITS AUTHORITY TO LICENSE AND REGULATE
44 GENETIC COUNSELORS, INCLUDING THE BOARD'S RULEMAKING AUTHORITY, CONSISTENT
45 WITH THE RIGHT OF CONSCIENCE PRESCRIBED BY SECTION 32-2714.

46 3. BY RULE:

1 (a) DEFINE AND DESCRIBE THE DUTIES AND LIMITS OF THE PRACTICE OF
2 GENETIC COUNSELING CONSISTENT WITH THIS CHAPTER.

3 (b) ADOPT STANDARDS WITH RESPECT TO THE PRACTICE OF GENETIC
4 COUNSELING THAT ARE DESIGNED TO SAFEGUARD THE HEALTH AND SAFETY OF
5 PATIENTS.

6 (c) ESTABLISH CRITERIA FOR GRANTING, DENYING, SUSPENDING AND
7 REVOKING A LICENSE IN ORDER TO PROTECT THE HEALTH AND SAFETY OF PATIENTS.

8 (d) ESTABLISH FEES PURSUANT TO SECTION 32-2711.

9 4. ORDER AND EVALUATE PHYSICAL, PSYCHOLOGICAL, PSYCHIATRIC AND
10 COMPETENCY TESTING OF LICENSEES AND APPLICANTS AS THE BOARD DETERMINES
11 NECESSARY TO ENFORCE THIS CHAPTER.

12 5. REVIEW THE CREDENTIALS AND THE ABILITIES OF APPLICANTS FOR
13 LICENSURE WHOSE PROFESSIONAL RECORDS OR PHYSICAL OR MENTAL CAPABILITIES
14 MAY NOT MEET THE REQUIREMENTS OF THIS CHAPTER.

15 6. INITIATE INVESTIGATIONS AND DETERMINE ON THE BOARD'S OWN MOTION
16 WHETHER A LICENSEE HAS ENGAGED IN UNPROFESSIONAL CONDUCT OR IS OR MAY BE
17 INCOMPETENT OR MENTALLY OR PHYSICALLY UNABLE TO SAFELY PRACTICE GENETIC
18 COUNSELING.

19 7. ENGAGE IN THE FULL EXCHANGE OF INFORMATION WITH THE LICENSING
20 AND DISCIPLINARY BOARDS AND PROFESSIONAL ASSOCIATIONS OF OTHER STATES AND
21 JURISDICTIONS OF THE UNITED STATES AND FOREIGN COUNTRIES AND WITH A
22 STATEWIDE ASSOCIATION FOR GENETIC COUNSELORS.

23 8. DIRECT THE PREPARATION AND CIRCULATION OF EDUCATIONAL MATERIALS
24 THE BOARD DETERMINES ARE HELPFUL AND PROPER FOR LICENSEES.

25 9. DISCIPLINE AND REHABILITATE GENETIC COUNSELORS PURSUANT TO THIS
26 CHAPTER.

27 B. THE BOARD SHALL HOLD AT LEAST ONE REGULAR MEETING EACH YEAR AND
28 MAY HOLD ADDITIONAL MEETINGS AS DETERMINED NECESSARY TO CARRY OUT THE
29 FUNCTIONS OF THE BOARD. THE BOARD SHALL ANNUALLY ELECT FROM THE
30 MEMBERSHIP A CHAIRPERSON AND VICE CHAIRPERSON. THE VICE CHAIRPERSON MAY
31 CALL REGULAR MEETINGS AND SPECIAL MEETINGS IF THE CHAIRPERSON IS NOT
32 AVAILABLE.

33 C. THE BOARD MAY DELEGATE TO THE DIRECTOR THE BOARD'S AUTHORITY
34 PURSUANT TO THIS SECTION OR SECTION 32-2704. THE BOARD SHALL ADOPT A
35 SUBSTANTIVE POLICY STATEMENT PURSUANT TO SECTION 41-1091 FOR EACH SPECIFIC
36 LICENSING AND REGULATORY AUTHORITY THE BOARD DELEGATES TO THE DIRECTOR.

37 D. THE BOARD MAY ADOPT RULES NECESSARY TO PROPERLY ADMINISTER AND
38 ENFORCE THIS CHAPTER.

39 E. THE CHAIRPERSON MAY ESTABLISH SUBCOMMITTEES CONSISTING OF BOARD
40 MEMBERS AND DEFINE THEIR DUTIES AS THE CHAIRPERSON DEEMS NECESSARY TO
41 CARRY OUT THE FUNCTIONS OF THE BOARD.

42 F. BOARD EMPLOYEES, INCLUDING THE DIRECTOR, TEMPORARY PERSONNEL AND
43 PROFESSIONAL MEDICAL INVESTIGATORS, ARE IMMUNE FROM CIVIL LIABILITY FOR
44 GOOD FAITH ACTIONS THEY TAKE TO ENFORCE THIS CHAPTER.

45 G. IN PERFORMING ITS DUTIES PURSUANT TO SUBSECTION A OF THIS
46 SECTION, THE BOARD MAY RECEIVE AND REVIEW STAFF REPORTS ON COMPLAINTS,
47 MALPRACTICE CASES AND ALL INVESTIGATIONS.

1 H. THE BOARD SHALL MAINTAIN AN ONLINE DIRECTORY OF LICENSED GENETIC
2 COUNSELORS.

3 32-2704. Director: duties: board staff and personnel:
4 compensation

5 A. THE EXECUTIVE DIRECTOR OF THE ARIZONA BOARD OF OSTEOPATHIC
6 EXAMINERS IN MEDICINE AND SURGERY IS THE DIRECTOR OF THE BOARD OF GENETIC
7 COUNSELORS. THE STAFF OF THE ARIZONA BOARD OF OSTEOPATHIC EXAMINERS IN
8 MEDICINE AND SURGERY SHALL CARRY OUT THE ADMINISTRATIVE RESPONSIBILITIES
9 OF THE BOARD OF GENETIC COUNSELORS.

10 B. THE DIRECTOR IS ELIGIBLE TO RECEIVE COMPENSATION SET BY THE
11 BOARD WITHIN THE RANGE DETERMINED UNDER SECTION 38-611.

12 C. THE DIRECTOR OR THE DIRECTOR'S DESIGNEE SHALL:

13 1. EMPLOY, EVALUATE, DISMISS, DISCIPLINE AND DIRECT PROFESSIONAL,
14 CLERICAL, TECHNICAL, INVESTIGATIVE AND ADMINISTRATIVE PERSONNEL NECESSARY
15 TO CARRY ON THE WORK OF THE BOARD.

16 2. SET COMPENSATION FOR BOARD EMPLOYEES WITHIN THE RANGE DETERMINED
17 UNDER SECTION 38-611.

18 3. AS DIRECTED BY THE BOARD, PREPARE AND SUBMIT RECOMMENDATIONS FOR
19 AMENDMENTS TO THE GENETIC COUNSELORS PRACTICE ACT FOR CONSIDERATION BY THE
20 LEGISLATURE.

21 4. APPOINT AND EMPLOY CONSULTANTS AND AGENTS NECESSARY TO CONDUCT
22 INVESTIGATIONS, GATHER INFORMATION AND PERFORM THOSE DUTIES THE DIRECTOR
23 DETERMINES ARE NECESSARY AND APPROPRIATE TO ENFORCE THIS CHAPTER.

24 5. ISSUE LICENSES TO APPLICANTS WHO MEET THE REQUIREMENTS OF THIS
25 CHAPTER.

26 6. MANAGE THE BOARD'S OFFICES.

27 7. PREPARE MINUTES, RECORDS, REPORTS, REGISTRIES, DIRECTORIES,
28 BOOKS AND NEWSLETTERS AND RECORD ALL BOARD TRANSACTIONS AND ORDERS.

29 8. COLLECT ALL MONIES DUE AND PAYABLE TO THE BOARD.

30 9. PAY ALL BILLS FOR AUTHORIZED EXPENDITURES OF THE BOARD AND ITS
31 STAFF.

32 10. PREPARE AN ANNUAL BUDGET.

33 11. SUBMIT A COPY OF THE BUDGET EACH YEAR TO THE GOVERNOR, THE
34 PRESIDENT OF THE SENATE AND THE SPEAKER OF THE HOUSE OF REPRESENTATIVES.

35 12. INITIATE AN INVESTIGATION IF EVIDENCE APPEARS TO DEMONSTRATE
36 THAT A GENETIC COUNSELOR MAY BE ENGAGED IN UNPROFESSIONAL CONDUCT OR MAY
37 BE MEDICALLY INCOMPETENT OR MENTALLY OR PHYSICALLY UNABLE TO SAFELY
38 PRACTICE AS A GENETIC COUNSELOR.

39 13. ISSUE SUBPOENAS IF NECESSARY TO COMPEL THE ATTENDANCE AND
40 TESTIMONY OF WITNESSES AND THE PRODUCTION OF BOOKS, RECORDS, DOCUMENTS AND
41 OTHER EVIDENCE.

42 14. PROVIDE ASSISTANCE TO THE ATTORNEY GENERAL IN PREPARING AND
43 SIGN AND EXECUTE DISCIPLINARY ORDERS, REHABILITATIVE ORDERS AND NOTICES OF
44 HEARINGS AS DIRECTED BY THE BOARD.

45 15. ENTER INTO CONTRACTS TO PROCURE GOODS AND SERVICES PURSUANT TO
46 TITLE 41, CHAPTER 23 THAT ARE NECESSARY TO CARRY OUT BOARD POLICIES AND
47 DIRECTIVES.

1 16. EXECUTE BOARD DIRECTIVES.

2 17. REPRESENT THE BOARD IN MATTERS WITH THE FEDERAL GOVERNMENT,
3 OTHER STATES OR JURISDICTIONS OF THE UNITED STATES, THIS STATE, POLITICAL
4 SUBDIVISIONS OF THIS STATE, THE NEWS MEDIA AND THE PUBLIC.

5 18. ENTER INTO STIPULATED AGREEMENTS ON BEHALF OF THE BOARD WITH
6 PERSONS UNDER THE JURISDICTION OF THE BOARD FOR THE TREATMENT,
7 REHABILITATION OR MONITORING OF CHEMICAL SUBSTANCE ABUSE OR MISUSE.

8 19. REVIEW ALL COMPLAINTS FILED PURSUANT TO SECTION 32-2709. IF
9 DELEGATED BY THE BOARD, THE DIRECTOR MAY DISMISS A COMPLAINT IF THE
10 COMPLAINT IS WITHOUT MERIT.

11 20. PERFORM ALL OTHER ADMINISTRATIVE, LICENSING AND REGULATORY
12 DUTIES DELEGATED AND REQUIRED BY THE BOARD.

13 D. CONSULTANTS AND AGENTS APPOINTED PURSUANT TO SUBSECTION C,
14 PARAGRAPH 4 OF THIS SECTION ARE ELIGIBLE TO RECEIVE COMPENSATION
15 DETERMINED BY THE DIRECTOR IN AN AMOUNT OF NOT MORE THAN \$200 FOR EACH DAY
16 OF SERVICE.

17 32-2705. Licensure required; exceptions

18 A. EXCEPT AS OTHERWISE PROVIDED IN THIS ARTICLE, A PERSON MAY NOT
19 ACT AS A GENETIC COUNSELOR WITHOUT BEING LICENSED PURSUANT TO THIS
20 CHAPTER.

21 B. THIS CHAPTER DOES NOT APPLY TO ANY OF THE FOLLOWING:

22 1. A PERSON WHO IS LICENSED IN THIS STATE AS A PHYSICIAN OR WHO IS
23 LICENSED TO PRACTICE IN A HEALTH CARE PROFESSION OTHER THAN THAT OF A
24 GENETIC COUNSELOR WHEN ACTING WITHIN THE SCOPE OF THE PERSON'S PROFESSION
25 AND DOING WORK OF A NATURE CONSISTENT WITH THE PERSON'S TRAINING. A
26 PERSON DESCRIBED IN THIS PARAGRAPH MAY NOT CLAIM TO BE A GENETIC
27 COUNSELOR.

28 2. A PERSON WHO IS EMPLOYED AS A GENETIC COUNSELOR BY THE FEDERAL
29 GOVERNMENT OR A FEDERAL AGENCY IF THE PERSON PROVIDES GENETIC COUNSELING
30 SERVICES SOLELY UNDER THE DIRECTION AND CONTROL OF THE ENTITY BY WHICH THE
31 PERSON IS EMPLOYED.

32 3. A GENETIC COUNSELING INTERN IF THE GENETIC COUNSELING SERVICES
33 PERFORMED BY THE GENETIC COUNSELING INTERN ARE AN INTEGRAL PART OF THE
34 GENETIC COUNSELING INTERN'S COURSE OF STUDY AND ARE PERFORMED UNDER THE
35 DIRECT SUPERVISION OF A GENETIC COUNSELOR WHO IS ASSIGNED TO SUPERVISE THE
36 GENETIC COUNSELING INTERN AND WHO IS ON DUTY AND AVAILABLE IN THE ASSIGNED
37 PATIENT CARE AREA.

38 4. A VISITING GENETIC COUNSELOR WHO HOLDS A CERTIFICATION, WHO IS
39 FROM ANOTHER STATE AND WHO PERFORMS ACTIVITIES AND SERVICES FOR A PERIOD
40 OF LESS THAN THIRTY DAYS EACH YEAR. A VISITING GENETIC COUNSELOR MUST BE
41 LICENSED OR REGISTERED IN THE STATE OF THE PERSON'S RESIDENCE IF LICENSURE
42 OR REGISTRATION IS AVAILABLE.

43 32-2706. Licensure application; reciprocity; renewal

44 A. ON COMPLETION OF RULEMAKING AND NOT LATER THAN OCTOBER 1, 2026,
45 A PERSON WHO WISHES TO PRACTICE GENETIC COUNSELING IN THIS STATE SHALL BE
46 LICENSED PURSUANT TO THIS CHAPTER. A PERSON WHO WAS PRACTICING GENETIC

1 COUNSELING ON THE EFFECTIVE DATE OF THIS SECTION SHALL APPLY TO THE BOARD
2 FOR LICENSURE PURSUANT TO THIS CHAPTER ON OR BEFORE JANUARY 1, 2028.

3 B. AN APPLICANT FOR LICENSURE SHALL SUBMIT TO THE BOARD AN
4 APPLICATION PRESCRIBED BY THE BOARD, THE FEE ESTABLISHED BY THE BOARD
5 PURSUANT TO SECTION 32-2711 AND SATISFACTORY EVIDENCE OF HAVING CURRENT
6 CERTIFICATION.

7 C. THE BOARD SHALL GRANT A GENETIC COUNSELOR LICENSE TO A PERSON
8 WHO MEETS THE QUALIFICATIONS PRESCRIBED BY THIS CHAPTER AND THE RULES
9 ADOPTED BY THE BOARD PURSUANT TO THIS CHAPTER.

10 D. AN APPLICANT WHO PROVIDES ADEQUATE DOCUMENTATION TO THE BOARD OF
11 THE APPLICANT'S LICENSURE OR REGISTRATION AS A GENETIC COUNSELOR UNDER THE
12 LAWS OF ANOTHER STATE, TERRITORY OR JURISDICTION OF THE UNITED STATES THAT
13 THE BOARD DETERMINES IMPOSES SUBSTANTIALLY THE SAME LICENSING REQUIREMENTS
14 AS THIS STATE MAY BE LICENSED PURSUANT TO THIS CHAPTER.

15 E. AN INDIVIDUAL WHO DOES NOT QUALIFY FOR LICENSURE UNDER THIS
16 CHAPTER BUT WHO HAS BEEN PRACTICING GENETIC COUNSELING IN THIS STATE
17 BEFORE THE EFFECTIVE DATE OF THIS SECTION AND WHO HAS WORKED IN THIS STATE
18 AS A GENETIC COUNSELOR FOR AT LEAST EIGHT YEARS BEFORE THE EFFECTIVE DATE
19 OF THIS SECTION MAY APPLY TO THE BOARD FOR LICENSURE IF THE INDIVIDUAL
20 SUBMITS ALL OF THE FOLLOWING TO THE BOARD:

21 1. DOCUMENTATION OF A MASTER'S OR HIGHER DEGREE IN MEDICAL
22 GENETICS, GENETIC COUNSELING OR A RELATED FIELD OF GENETIC STUDY FROM AN
23 ACCREDITATION COUNCIL FOR A GENETIC COUNSELING ACCREDITED PROGRAM.

24 2. THREE LETTERS OF RECOMMENDATION FROM A PHYSICIAN OR GENETIC
25 COUNSELOR, INCLUDING AT LEAST ONE LETTER FROM A GENETIC COUNSELOR WHO IS
26 ELIGIBLE FOR LICENSURE UNDER THIS SECTION AND ONE LETTER FROM A CLINICAL
27 OR MEDICAL GENETICIST WHO IS CERTIFIED BY THE AMERICAN BOARD OF MEDICAL
28 GENETICS AND GENOMICS, OR ITS SUCCESSOR. ALL INDIVIDUALS WHO SUBMIT
29 LETTERS OF RECOMMENDATION UNDER THIS PARAGRAPH MUST HAVE WORKED WITH THE
30 APPLICANT IN AN EMPLOYMENT SETTING WITHIN THE IMMEDIATELY PRECEDING TEN
31 YEARS AND BE ABLE TO ATTEST TO THE APPLICANT'S COMPETENCY IN PROVIDING
32 GENETIC COUNSELING SERVICES.

33 3. DOCUMENTATION OF HAVING COMPLETED TWO AND ONE-HALF CONTINUING
34 EDUCATION UNITS IN THE TWELVE MONTHS IMMEDIATELY PRECEDING THE APPLICATION
35 DATE.

36 F. EXCEPT IN THE CASE OF A PROVISIONAL LICENSE ISSUED PURSUANT TO
37 SECTION 32-2707, ALL LICENSES SHALL BE ISSUED FOR A TWO-YEAR PERIOD ON
38 PAYMENT OF THE FEE ESTABLISHED BY THE BOARD PURSUANT TO SECTION 32-2711.

39 G. A LICENSE SHALL BE RENEWED ON FILING A RENEWAL APPLICATION THAT
40 INCLUDES THE RENEWAL FEE ESTABLISHED BY THE BOARD PURSUANT TO SECTION
41 32-2711 AND DOCUMENTATION OF HAVING COMPLETED THE NUMBER OF CONTINUING
42 EDUCATION UNITS REQUIRED FOR CERTIFICATION, PRORATED FOR THE LENGTH OF THE
43 LICENSE. A PERSON SHALL FILE AN APPLICATION FOR RENEWAL AT LEAST THIRTY
44 DAYS AND NOT MORE THAN SIXTY DAYS BEFORE THE DATE THE PERSON'S CURRENT
45 LICENSE EXPIRES.

46 32-2707. Provisional license; period of validity; extension;
47 supervision requirements; definitions

1 A. THE BOARD MAY GRANT A PERSON WITH ACTIVE CANDIDATE STATUS A
2 PROVISIONAL LICENSE FOR THAT PERSON TO PRACTICE GENETIC COUNSELING IF THE
3 PERSON FILES AN APPLICATION AND PAYS THE PROVISIONAL LICENSE FEE
4 ESTABLISHED BY THE BOARD PURSUANT TO SECTION 32-2711. THE PROVISIONAL
5 LICENSE IS VALID FOR ONE YEAR AFTER THE DATE OF ISSUANCE AND MAY BE
6 EXTENDED FOR ONE ADDITIONAL YEAR IF THE APPLICANT FAILS TO OBTAIN
7 CERTIFICATION.

8 B. A PROVISIONAL LICENSE EXPIRES AUTOMATICALLY ON THE EARLIEST OF
9 THE FOLLOWING:

10 1. ISSUANCE OF A LICENSE PURSUANT TO SECTION 32-2706.

11 2. THIRTY DAYS AFTER THE APPLICANT PROVISIONAL LICENSEE FAILS TO
12 TAKE OR PASS THE NEXT AVAILABLE COMPLETE CERTIFICATION EXAMINATION.

13 3. THE DATE PRINTED ON THE PROVISIONAL LICENSE.

14 C. AN APPLICATION FOR EXTENSION OF A PROVISIONAL LICENSE SHALL BE
15 SIGNED BY THE PROVISIONAL LICENSEE'S QUALIFIED SUPERVISOR.

16 D. A PROVISIONAL LICENSEE SHALL WORK UNDER THE SUPERVISION OF A
17 QUALIFIED SUPERVISOR AT ALL TIMES DURING WHICH THE PROVISIONAL LICENSEE
18 PRACTICES GENETIC COUNSELING. THE QUALIFIED SUPERVISOR AND THE
19 PROVISIONAL LICENSEE SHALL COMPLETE AND MAINTAIN A SUPERVISION AGREEMENT
20 THAT IS SIGNED BY THE QUALIFIED SUPERVISOR AND THE PROVISIONAL LICENSEE
21 AND THAT IS KEPT ON FILE WITH BOTH PARTIES.

22 E. FOR THE PURPOSES OF THIS SECTION:

23 1. "QUALIFIED SUPERVISOR" MEANS A PERSON WHO IS A LICENSED GENETIC
24 COUNSELOR OR A LICENSED PHYSICIAN IN THIS STATE.

25 2. "SUPERVISION":

26 (a) MEANS THAT A QUALIFIED SUPERVISOR WHO HAS THE OVERALL
27 RESPONSIBILITY ASSESSES THE WORK OF THE PROVISIONAL LICENSEE, INCLUDING
28 THROUGH REGULAR MEETINGS AND CHART REVIEW.

29 (b) DOES NOT MEAN THAT THE QUALIFIED SUPERVISOR IS REQUIRED TO BE
30 PRESENT DURING THE PROVISIONAL LICENSEE'S PERFORMANCE OF THE SERVICE.

31 32-2708. Grounds for denial, suspension or revocation of a
32 license; disciplinary action; hearings; civil
33 penalties; enforcement

34 A. THE BOARD MAY DENY, SUSPEND OR REVOKE THE LICENSE OF ANY GENETIC
35 COUNSELOR OR ANY APPLICANT FOR LICENSURE WHO:

36 1. VIOLATES ANY PROVISION OF THIS CHAPTER OR THE RULES ADOPTED
37 PURSUANT TO THIS CHAPTER.

38 2. IS CONVICTED OF A FELONY OR A MISDEMEANOR INVOLVING MORAL
39 TURPITUDE.

40 3. INDULGES IN CONDUCT OR A PRACTICE THAT IS DETRIMENTAL TO THE
41 HEALTH OR SAFETY OF A PATIENT.

42 B. THE BOARD MAY NOT DENY, SUSPEND OR REVOKE THE LICENSE OF ANY
43 GENETIC COUNSELOR FOR INVOKING THE GENETIC COUNSELOR'S RIGHT PURSUANT TO
44 SECTION 32-2714 OR FOR ANY REASON THAT IS INCONSISTENT WITH THAT SECTION.

45 C. THE BOARD MAY DENY A LICENSE WITHOUT HOLDING A HEARING. AN
46 APPLICANT MAY APPEAL THIS DECISION PURSUANT TO TITLE 41, CHAPTER 6,
47 ARTICLE 10.

1 D. THE BOARD SHALL CONDUCT A HEARING TO SUSPEND OR REVOKE ANY
2 LICENSE IN ACCORDANCE WITH THE PROCEDURES ESTABLISHED PURSUANT TO TITLE
3 41, CHAPTER 6, ARTICLE 10. IF THE BOARD DETERMINES AT THE CONCLUSION OF A
4 HEARING THAT GROUNDS EXIST TO SUSPEND OR REVOKE A LICENSE, THE BOARD MAY
5 DO SO PERMANENTLY OR FOR ANY PERIOD OF TIME AND UNDER ANY CONDITIONS THAT
6 THE BOARD DEEMS APPROPRIATE. AN APPLICANT FOR LICENSURE OR A LICENSEE MAY
7 APPEAL THE FINAL DECISION OF THE BOARD.

8 E. IN ADDITION TO ANY OTHER DISCIPLINARY ACTION, THE BOARD MAY
9 ASSESS A CIVIL PENALTY OF NOT MORE THAN \$100 FOR EACH VIOLATION OF THIS
10 CHAPTER OR A RULE ADOPTED PURSUANT TO THIS CHAPTER AS DETERMINED BY A
11 HEARING HELD PURSUANT TO THIS SECTION. EACH DAY THAT A VIOLATION
12 CONTINUES CONSTITUTES A SEPARATE OFFENSE. THE ATTORNEY GENERAL OR THE
13 COUNTY ATTORNEY MAY BRING AN ACTION IN THE NAME OF THIS STATE TO ENFORCE A
14 CIVIL PENALTY. THE ACTION SHALL BE FILED IN THE SUPERIOR COURT OR IN
15 JUSTICE COURT IN THE COUNTY WHERE THE VIOLATION OCCURRED.

16 F. IN ADDITION TO OTHER AVAILABLE REMEDIES, THE BOARD MAY APPLY TO
17 THE SUPERIOR COURT FOR AN INJUNCTION TO RESTRAIN A PERSON FROM VIOLATING
18 THIS CHAPTER OR A RULE ADOPTED PURSUANT TO THIS CHAPTER. THE COURT SHALL
19 GRANT A TEMPORARY RESTRAINING ORDER, A PRELIMINARY INJUNCTION OR A
20 PERMANENT INJUNCTION WITHOUT BOND. THE PERSON MAY BE SERVED IN ANY COUNTY
21 OF THIS STATE. THE ACTION SHALL BE BROUGHT ON BEHALF OF THE BOARD BY THE
22 ATTORNEY GENERAL OR THE COUNTY ATTORNEY OF THE COUNTY WHERE THE VIOLATION
23 OCCURS.

24 G. A GENETIC COUNSELOR WHOSE LICENSE IS SUSPENDED OR REVOKED OR
25 WHOSE SURRENDER OF A LICENSE WITH OR WITHOUT PREJUDICE HAS BEEN ACCEPTED
26 BY THE BOARD SHALL PROMPTLY DELIVER THE LICENSE TO THE BOARD.

27 H. A PROVISIONAL LICENSEE WHO LOSES ACTIVE CANDIDATE STATUS SHALL
28 SURRENDER THE PROVISIONAL LICENSE TO THE BOARD IMMEDIATELY.

29 32-2709. Investigations; complaints; issuance of subpoenas;
30 confidentiality

31 A. THE DIRECTOR MAY INVESTIGATE A COMPLAINT OR ANY INFORMATION THAT
32 INDICATES THAT A PERSON IS OR MAY BE VIOLATING THIS ARTICLE. IN
33 CONNECTION WITH AN INVESTIGATION, THE DIRECTOR MAY EXAMINE AND COPY
34 DOCUMENTS AND OTHER PHYSICAL EVIDENCE WHEREVER LOCATED THAT RELATE TO THE
35 CONDUCT OR COMPETENCY OF A GENETIC COUNSELOR PURSUANT TO THE REQUIREMENTS
36 OF THIS CHAPTER AND THE RULES ADOPTED PURSUANT TO THIS CHAPTER.

37 B. PURSUANT TO AN INVESTIGATION OR AN ADMINISTRATIVE PROCEEDING,
38 THE DIRECTOR MAY ISSUE SUBPOENAS TO COMPEL THE TESTIMONY OF WITNESSES OR
39 TO DEMAND THE PRODUCTION OF RELEVANT DOCUMENTS AND OTHER PHYSICAL
40 EVIDENCE. IF A PERSON REFUSES TO COMPLY WITH A SUBPOENA, THE DIRECTOR MAY
41 APPLY TO THE SUPERIOR COURT FOR AN ORDER TO COMPEL COMPLIANCE.

42 C. PATIENT RECORDS, INCLUDING CLINICAL RECORDS, MEDICAL REPORTS,
43 LABORATORY STATEMENTS AND REPORTS, FILES, FILMS, ORAL STATEMENTS RELATING
44 TO PATIENT AND FAMILY HISTORIES, EVALUATIONS, FINDINGS AND COUNSELING
45 INFORMATION THAT ARE KEPT BY THE DIRECTOR PURSUANT TO AN INVESTIGATION OR
46 AN ADMINISTRATIVE PROCEEDING ARE NOT PUBLIC RECORDS AND ARE NOT SUBJECT TO
47 TITLE 39, CHAPTER 1, ARTICLE 2. THE DIRECTOR SHALL KEEP CONFIDENTIAL THE

1 NAMES OF PATIENTS AND THEIR FAMILIES WHOSE RECORDS ARE REVIEWED DURING THE
2 COURSE OF AN INVESTIGATION, ADMINISTRATIVE PROCEEDING OR HEARING.

3 32-2710. Violations; classification

4 A PERSON IS GUILTY OF A CLASS 6 FELONY WHO:

5 1. OBTAINS A LICENSE AS A GENETIC COUNSELOR BY FRAUD, INTENTIONAL
6 MISREPRESENTATION OR DECEIT.

7 2. PRACTICES GENETIC COUNSELING WITHOUT A LICENSE ISSUED PURSUANT
8 TO THIS CHAPTER OR AFTER THE PERSON'S LICENSE HAS BEEN DENIED, SUSPENDED
9 OR REVOKED.

10 32-2711. Fees; rules

11 THE BOARD SHALL PRESCRIBE IN RULE AND COLLECT FEES FOR ALL OF THE
12 FOLLOWING:

13 1. AN INITIAL GENETIC COUNSELOR LICENSE APPLICATION.

14 2. A ONE-YEAR PROVISIONAL GENETIC COUNSELOR LICENSE AND, IF
15 GRANTED, A ONE-YEAR PROVISIONAL LICENSE EXTENSION.

16 3. A TWO-YEAR INITIAL GENETIC COUNSELOR LICENSE.

17 4. A TWO-YEAR RENEWAL OF THE GENETIC COUNSELOR LICENSE.

18 5. AN APPLICATION FOR REINSTATEMENT OF AN EXPIRED LICENSE.

19 32-2712. Use of title; prohibitions

20 IT IS A VIOLATION OF THIS CHAPTER FOR A PERSON WHO IS NOT LICENSED
21 PURSUANT TO THIS CHAPTER TO USE THE TITLE "LICENSED GENETIC COUNSELOR" OR
22 THE ABBREVIATION "L.G.C." OR TO USE ANY OTHER WORDS, LETTERS, SIGNS OR
23 FIGURES TO INDICATE THAT THE PERSON IS A LICENSED GENETIC COUNSELOR.

24 32-2713. Genetic counselors board fund; deposit

25 A. THE GENETIC COUNSELORS BOARD FUND IS ESTABLISHED. THE BOARD
26 SHALL DEPOSIT, PURSUANT TO SECTIONS 35-146 AND 35-147, TEN PERCENT OF ALL
27 MONIES COLLECTED PURSUANT TO THIS CHAPTER IN THE STATE GENERAL FUND AND
28 DEPOSIT THE REMAINING NINETY PERCENT IN THE GENETIC COUNSELORS BOARD FUND.

29 B. ALL MONIES DEPOSITED IN THE GENETIC COUNSELORS BOARD FUND ARE
30 SUBJECT TO SECTION 35-143.01.

31 32-2714. Right of conscience; immunity; definitions

32 A. A GENETIC COUNSELOR HAS THE RIGHT NOT TO PARTICIPATE IN OR
33 PROVIDE ANY GENETIC COUNSELING THAT VIOLATES THE GENETIC COUNSELOR'S
34 CONSCIENCE.

35 B. A PERSON MAY NOT TAKE ~~[OR THREATEN TO TAKE]~~ ADVERSE ACTION
36 AGAINST A GENETIC COUNSELOR FOR DECLINING TO PARTICIPATE IN A GENETIC
37 COUNSELING SERVICE ON THE BASIS OF CONSCIENCE. THE LICENSING OF A GENETIC
38 COUNSELOR MAY NOT BE CONTINGENT ON THE GENETIC COUNSELOR'S PARTICIPATION
39 IN COUNSELING OR REFERRAL IN COUNSELING THAT VIOLATES THE GENETIC
40 COUNSELOR'S CONSCIENCE.

41 C. IF A GENETIC COUNSELOR DECLINES TO PARTICIPATE IN OR PROVIDE
42 REQUESTED GENETIC COUNSELING PURSUANT TO THIS SECTION, THE GENETIC
43 COUNSELOR SHALL BOTH:

44 1. INFORM THE PATIENT IN A TIMELY MANNER THAT THE GENETIC COUNSELOR
45 IS UNABLE TO PROVIDE THE REQUESTED GENETIC COUNSELING.

1 2. OFFER TO DIRECT THE PATIENT TO THE ONLINE DIRECTORY OF LICENSED
2 GENETIC COUNSELORS MAINTAINED BY THE BOARD. THE GENETIC COUNSELOR IS NOT
3 REQUIRED TO PROVIDE A REFERRAL TO A SPECIFIC PROVIDER OR ENTITY.

4 D. A GENETIC COUNSELOR IS IMMUNE FROM CIVIL, CRIMINAL AND
5 ADMINISTRATIVE LIABILITY FOR EXERCISING THE RIGHT OF CONSCIENCE WITH
6 RESPECT TO GENETIC COUNSELING. THE IMMUNITY PROVIDED BY THIS SUBSECTION
7 DOES NOT EXTEND TO INTENTIONAL CRIMINAL MISCONDUCT OR THE KNOWING
8 FALSIFICATION OR ALTERATION OF MEDICAL RECORDS, TEST RESULTS OR DIAGNOSTIC
9 INFORMATION.

10 E. FOR THE PURPOSES OF THIS SECTION:

11 1. "CONSCIENCE" MEANS THE RELIGIOUS, MORAL OR ETHICAL BELIEFS OR
12 PRINCIPLES HELD BY A GENETIC COUNSELOR.

13 2. "PARTICIPATE" MEANS TO TAKE PART IN ANY WAY IN PROVIDING GENETIC
14 COUNSELING OR ANY PART OF SUCH SERVICE.

15 Sec. 2. Section 32-3201, Arizona Revised Statutes, is amended to
16 read:

17 32-3201. Definitions

18 In this chapter, unless the context otherwise requires:

19 ~~2.~~ 1. "Health professional" means a person who is certified or
20 licensed pursuant to chapter 7, 8, 11, 13, 14, 15, 15.1, 16, 17, 18, 19,
21 19.1, 21, 25, 27, 28, 29, 33, 34, 35, 39, 41 or 42 of this title, title
22 36, chapter 4, article 6, title 36, chapter 6, article 7 or title 36,
23 chapter 17.

24 ~~1.~~ 2. "Health profession regulatory board" means any board that
25 regulates one or more health professionals in this state.

26 3. "Medical ~~record~~ RECORDS" has the same meaning prescribed in
27 section 12-2291 but does not include prescription orders.

28 Sec. 3. Section 36-3601, Arizona Revised Statutes, is amended to
29 read:

30 36-3601. Definitions

31 ~~For the purposes of~~ IN this chapter, UNLESS THE CONTEXT OTHERWISE
32 REQUIRES:

33 1. "Health care decision maker" has the same meaning prescribed in
34 section 12-2801.

35 2. "Health care provider":

36 (a) Means a person WHO IS licensed pursuant to title 32, chapter 7,
37 8, 13, 14, 15, 15.1, 16, 17, 18, 19, 19.1, 25, 27, 28, 29, 33, 34, 35, 39,
38 41 or 42, or chapter 4, article 6 of this title, chapter 6, article 7 of
39 this title or chapter 17 of this title.

40 (b) Includes:

41 (i) A health care institution THAT IS licensed pursuant to chapter
42 4 of this title.

43 (ii) A person who holds a training permit pursuant to title 32,
44 chapter 13 or 17.

45 3. "Health care provider regulatory board or agency" means a board
46 or agency that regulates one or more health care provider professions in
47 this state.

1 4. "Telehealth" means:

2 (a) The interactive use of audio, video or other electronic media,
3 including asynchronous store-and-forward technologies and remote patient
4 monitoring technologies, for the practice of health care, assessment,
5 diagnosis, consultation or treatment and the transfer of medical data.

6 (b) Includes the use of an audio-only telephone encounter between
7 the patient or client and health care provider if an audio-visual
8 telehealth encounter is not reasonably available due to the patient's
9 functional status, the patient's lack of technology or telecommunications
10 infrastructure limits, as determined by the health care provider.

11 (c) Does not include the use of a fax machine, instant messages,
12 ~~voice mail~~ VOICEMAIL or email.

13 Sec. 4. Title 41, chapter 27, article 2, Arizona Revised Statutes,
14 is amended by adding section 41-3034.01, to read:

15 41-3034.01. Board of genetic counselors; termination July 1,
16 2034

17 A. THE BOARD OF GENETIC COUNSELORS TERMINATES ON JULY 1, 2034.

18 B. TITLE 32, CHAPTER 27 AND THIS SECTION ARE REPEALED ON JANUARY 1,
19 2035.

20 Sec. 5. Purpose

21 Pursuant to section 41-2955, subsection E, Arizona Revised Statutes,
22 the legislature establishes the board of genetic counselors to regulate
23 the practice of genetic counseling for the public health, safety and
24 welfare.

25 Sec. 6. Initial terms; members of board of genetic counselors

26 A. Notwithstanding section 32-2702, Arizona Revised Statutes, as
27 added by this act, the initial terms of members of the board of genetic
28 counselors are:

29 1. One term ending September 1, 2028.

30 2. Two terms ending September 1, 2029.

31 B. The governor shall make all subsequent appointments as
32 prescribed by statute.

33 Enroll and engross to conform

34 Amend title to conform

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